

25CHCV04005 25CHCV04005

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-09-23

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF46%2C09%2F23%2F2026

Source SHA-256: 4eec4002df7f3c2c08a2c152d9b01c826bb2795a2509be9920cd9756239f035c

Case Number: 25CHCV04005 Hearing Date: September 23, 2026 Dept: F46

Dept. F-46

Hearing Date: September 23, 2026

Case Number: 25CHCV04005

MOTION TO COMPEL DEPOSITION OF DEFENDANT BMW OF NORTH
AMERICA, LLC'S PERSON(S) MOST KNOWLEDGEABLE AND PRODUCTION OF DOCUMENTS

Motion filed on August 25, 2026.

MOVING PARTY: Plaintiff, WeCare Shan Inc.

RESPONDING PARTY: Defendant, BMW of North America, LLC

NOTICE: OK.

RELIEF REQUESTED: Plaintiff moves to compel Defendant BMW of
North America, LLC to produce its person or persons most knowledgeable for
deposition as to 34 matters for examination and to produce documents responsive
to Requests for Production Nos. 1 through 16. Plaintiff also requests monetary
sanctions.

RULING: Continued to November 9, 2026.

ORDER

On November 12, 2025, Plaintiff WeCare Shan Inc. (Plaintiff)

filed a complaint against Defendant BMW of North America, LLC (BMW NA). On August 25, 2026, Plaintiff filed the instant motion to compel the deposition of BMW NA's person or persons most knowledgeable and production of documents. Plaintiff also requests monetary sanctions. On September 10, 2026, BMW NA filed an opposition. On September 16, 2026, Plaintiff filed a reply.

The Court has reviewed the moving papers, opposition, and reply. The Court does not reach the merits at this time.

The Motion to Compel is CONTINUED to November 9, 2026, at 8:30 a.m. in Department F-46.

Before the continued hearing, counsel are ordered to meet and confer in person, not by email or letter, within 21 calendar days of this order, regarding the identification of BMW NA's PMK witness or witnesses and the matters each will address, specific dates on which the witness or witnesses are available for deposition, the scope of the remaining disputed matters for examination, and the scope of the remaining disputed document requests and production, including whether production BMW NA has agreed to make has been completed and what production remains outstanding.

The parties shall file a joint statement of remaining issues no later than five court days before the continued hearing. For each remaining disputed issue, the joint statement shall identify the issue and set forth Plaintiff's position followed by BMW NA's position. Any issue not identified in the joint statement will be deemed resolved and will not be considered at the continued hearing.

If all issues raised by the motion are resolved before November 9, 2026, the parties shall promptly notify the Court. The Court may thereafter take the motion off calendar.

The Court reserves ruling on Plaintiff's request for monetary sanctions.